

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Aminul Islam

Death Reference No.117 OF 2017

The State

... Petitioner

-Versus-

Md. Enamul Haque

...Condemned-prisoner

with

Jail Appeal No.363 OF 2017

Md. Enamul Haque

.....Convict-appellant

-Versus-

The State

... Respondent

Ms. Nargis Akhter, State Defense Lawyer

...for the Convict-appellant Md. Enamul Haque

Ms. Shamima Parvin, Advocate

.....For the Convict appellant Md. Enamul Haque
in Jail Appeal No.363 of 2017.

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G with

Mr. Abdul Aziz Masud, A. A. G. with

Md. Shamim Khan, A. A. G

... For the State.

Heard on 15.11.2023 and Judgment on 23.11.2023.

S M Kuddus Zaman,J:

This Death Reference under section 374 of the Code of Criminal Procedure, 1889 (hereinafter referred to as the Code) has been submitted by the learned Additional Session Judge, Thakurgaon for confirmation of the sentence of death passed on 24.08.2017 against condemned accused Md. Enamul Haque in Session Case No.84 of 2011 arising out of Pirganj Police Station Case No.13 dated 25.04.2011 and G. R. Case No.289 of 2011 under section 302 of the Penal Code, 1860 for commission of murder of his wife Salma Begum.

Being aggrieved by above judgment and order of conviction and sentence passed by the learned Additional Sessions Judge in Sessions Case No.84 of 2011 condemned accused Md. Emanul Haque preferred Jail Appeal No.363 of 2017.

Above Death Reference and Jail Appeal having arisen out of the same judgment and order of conviction and sentence dated 24.08.2017 passed by the learned Additional Session Judge in Session Case No.84 of 2011 under section 302 of the Penal Code and involved identical questions laws and

facts both above Death Reference and Jail appeal are heard together and being disposed of by this single judgment.

Facts in short are that now deceased Md. Sofir Uddin brother of victim Salma Begum lodged an ejahar on 25.04.2011 alleging that above 24 years back her sister Salma was given marriage to accused Md. Enamul Haque. Accused Emanul being financially poor his father constructed a house for his daughter and accused Md. Emanul Haque was living in above house and working as an agricultural labour. On 24.04.2011 after Asor prayer accused Emanul along with his wife victim Salma went to visit the house of their elder daughter P.W.2 Bijly and after eating meal they set out to return home at 6.30 PM. At about 8.40 PM accused Enamul alone returned to home and told to his elder son P.W.1 Md. Islamul Haque that victim Salma was staying in the house of P.W.2 Bijly. P.W.1 Islamul Haque gave a mobile phone call to his sister P.W.2 Bijly who disclosed that accused Enamul and victim Salma jointly left her house to return back to their home. Thereafter accused Enamul fled away and on 25.04.2011 at 1.30 PM the decomposed dead body of victim Salma was retrieved from

land of Mokbul. On their way back to home on 20.04.2021 anytime after 6.30 PM accused Enamul murdered his wife Salma and buried her dead body in above land.

Sub-Inspector of Police Amzad Hossain retrieved the decomposed dead body of victim Salma, performed inquest of the same and forwarded above dead body for post mortem examination. The investigation of the case was assigned to above Md. Amzad Hossain who in course of investigation visited the place of occurrence and prepared a sketch map of the same along with an index thereof, seized alamats by a seizure list and recorded statement of witnesses under section 161 of the Code of Criminal Procedure. He arrested accused Enamul on 28.06.2011 from Hosna village of Birol Police Station and produced him before P.W.22 Md. Fahim Faysal a judicial Magistrate on 29.06.2011 at 12.45 PM for recording his confession. On the basis of above confession and at the showing of accused Enamul he recovered the spade used to bury the dead body of victim Salma from Vatapara jungle. In above investigation offence punishable under section 302 of the Penal Code, 1860 having prima facie proved against

accused Enamul he submitted charge sheet No.105 dated 07.10.2011 against him.

At trial prosecution examined 24 witnesses but out of above witnesses P.W.6 Most. Halima Khatun, P.W.14 Md. Alahi Box and P.W.20 Md. Ashadurzzaman were declared hostile by the State and cross examined. All above prosecution witnesses were cross examined by the State appointed defense Advocate for accused Enamul.

Documents and materials produced and proved by the persecution were marked as Exhibit Nos.1 to 12/2 and I to IV respectively.

On consideration of above facts and circumstances of the case and evidence on record the learned Additional Session Judge convicted accused Md. Enamul Haque under section 302 of the Penal Code, 1860 and sentenced him to death as mentioned above.

As mentioned above in this case prosecution has examined as many as 24 whiteness to bring home the charge levelled against accused Enamul under section 302 of the Penal Code.

P.W.1 Md. Islamul Haque is the son of the victim Salma and accused Enumul Haque. He stated that the informant of this case was his maternal uncle Sofir Uddin who has already died. On 2004.2011 his father and mother victim Salma went to visit the house of his elder sister P.W.2 Bijly in Sibgonj village. At 6.00/6.30 PM they set out to return back to home and when they arrived at Railghunti a hot altercation started between them and his father pressed the throat of victim Salma causing her death. Accused Enamul alone returned to home and stated to him that she stayed in the house of P.W. 2 Bijly. Thereafter his father fled away and he made a phone call to his sister P.W.2 Bijly who stated that her mother left her house together with her father. They searched to find out her mother but to no avail and he entered G.D. No.965 on 23.04.2011. On 25.04.2011 hearing of the recovery of a dead body in the land of Mokbul he rushed to above place and identified the dead body of his mother. The witness proved the ejahar and the inquest report of the dead body of victim Salma and signatures of his maternal uncle on above documents which were marked as Exhibit Nos.1, 1/1, 2 & 2/1 respectively.

Accused Enamul made a confession to the judicial Magistrate under section 164 of the Code of Criminal Procedure. In cross examination he stated that there was none with his parents at the time of the occurrence. He saw his father and mother set out together for the house of his elder sister P.W.2 Bijly on 20.04.2011. The father of his deceased mother had 10-15 bighas land and his mother and maternal uncle Sofir Uddin were his heirs. He further stated that when his parents set out for the house of P.W.2 Bijly they were in cordial relations and they stayed in above house for 30 minutes peacefully. The dead body of his mother was decomposed and no mark of injury was visible. He lastly stated that they he did not see the occurrence.

P.W.2 Bijly is the elder daughter of victim Salma and accused Enamul who stated that on 20.04.2011 afternoon her parents came to visit her house and after eating meal they jointly set out for their home before Maghrib prayer time. At 8.00 PM her brother P.W.1 Islamul informed her over phone that his father alone returned home and asked if his mother was staying in her house. She informed him that the father

and mother together left her house before Maghrib time. On 25.04.2011 on receipt of an information about an abandoned dead body in the field of Mokbul she rushed there and identified the dead body of her mother. Police arrested accused Enamul from Birol of Dinajpur and at his showing recovered the spade which was used to bury the dead body of victim Salma. Her father made a confession to a judicial Magistrate under section 164 of the Code of Criminal Procedure. In cross examination she stated that her father and mother arrived at her house at Asor prayer time and left her house to go back to their house together at Maghrib time. Her parents stayed at her house for about $1\frac{1}{2}$ hours. During their above stay at her house her parents did not quarrel.

P.W.3 Most. Chumki Begum is the younger daughter of accused Enamul and victim Salma Begum who stated that her parents together went to the house of P.W.2 Bijly on 20.04.2011 and after taking meal they left above house to return to their house at 6.30 PM. Accused Enamul alone returned to home and disclosed that he has left victim Salma in the house of P.W.2 Bijly. Thereafter accused Enamul fled away and P.W.1 Islamul

Haque came to know from P.W.2 Bijly that her father and mother together left her house. On 25.04.2021 his brother and sister, P.W.1 and P.W.2 respectively, identified the dead body of their mother victim Salma on the basis of her shari and bangles. Her father was arrested from Birol of Dinajpur and at his showing a spade was recovered and seized. In cross examination she stated that on the date of occurrence she was in the house of her husband. She does not know if her father and mother were engaged in a quarrel.

P.W.4 Sree Ramonikanto Ray is a witness to the seizure list who stated that on 29.06.2011 at 12.45 hours at the showing of accused Enamul police recovered and seized a spade in his presence. The witness proved above seizure list and his signature on the same which were marked as Exhibit No.4 & 4/1 respectively. The witness also proved above spade which was marked as Material Exhibit No.I. In cross examination she stated that the spade was recovered from the jungle and he was standing outside of the jungle.

P.W.5 Sree Sahdeb Chandra Ray is another witness to above seizure list who stated that on 29.06.2011 at 12.45 hours

in his presence police recovered a spade at the showing of accused Enamul. The witness proved his signature on the above seizure list which was marked as Exhibit Nos.4/2 and he identified above spade which was marked Material Exhibit No.I. In cross examination he stated that he was standing outside of the jungle and police pushed the accused inside the above jungle.

P.W.6 Most. Halima Khatun is the wife of now deceased informant Sofir Uddin who stated that about 6 year back accused Enamul along with victim Salma went to visit the house of their elder daughter and before dusk they set out for return to home. Accused Enamul alone returned home but victim Salma did not return. Accused Enamul stated that victim Salma was staying at the house of P.W.2 Bijly and fled away. The dead body of victim Salam was found in the Shampur field. She went there and identified the dead body of victim Salma. Subsequently accused Enamul was arrested and he confessed to have murdered his wife victim Salma. This witness was declared hostile by the State and cross examined.

In cross examination by the defense she stated that victim Salma was sick and she used to take medicine regularly.

P.W.7 Most. Sahera Khatun stated that accused Enamul along with his wife victim Salma went to visit the house of their elder daughter Bijly on 20.04.2011 and after eating meal they set out for their home. Accused Enamul alone returned to home and stated that victim Salma was staying in the house of P.W.2 Bijly. P.W.1 Islamul Haque gave a mobile phone call to Bijly and came to know that accused Enamul and her mother together left her house. After a few days the dead body of victim Salma was found in the Shampur field and accused Enamul confessed to have murdered his wife. In cross examination she stated that she did not go to see the dead body nor she knows how victim Salma died.

P.W.8 A. S. I. Md. Jonab Ali is a constable who handed over the typed ejahar of this case to Sub-Inspector Md. Amzad Hossain on 25.04.2011. In cross examination he stated that Investigation Officer did not examine him.

P.W.9 Manoronjon is a witness to the seizure list of the spade. The witness proved his signature on above seizure list

which was marked as Exhibit Nos.4/3. In cross examination he stated that he was outside of the jungle and the spade was recovered from inside the jungle.

P.W.10 Samcharon Ray is another witness to above seizure list of the spade. The witness identified his signature on above seizure list which was marked as Exhibit Nos.4/4. In cross examination he stated that he did not enter into the jungle.

P.W.11 Md. Nuruzzaman is a witness to the inquest report who stated that police prepared above report in his presence and he gave signature on the same as a witness. The witness proved the inquest report and his signature on the same which were marked as Exhibit Nos.2 & 2/2 respectively. In cross examination he stated that no mark of injury was visible on above dead body which was decomposed.

P.W.12 Md. Amijul islam is another witness to above inquest report who proved the inquest report and his signature on the same which were marked as Exhibit Nos.2/3. In cross examination he stated that he did not see any injury on the person of victim Salma.

P.W.13 Md. Bablur Rahman is another witness to the inquest report who proved his signature on the inquest report which was marked as Exhibit Nos.2/4. This witness was declared hostile by the State and cross examined. In cross examination by the defence he stated that he saw above dead body from a distance and did not see any mark of injury.

P.W.14 Md. Alahi Baksh is a village police who stated that he saw a dead body which was buried in the field of Mokbul and he informed the chairman of above fact. The police, local people and relatives of the deceased came to above place and the son of the deceased identified her dead body. This witness was declared hostile by the State and cross examined. In cross examination he stated that police did not examine him.

P.W.15 Md. Altafur Rahman is a witness to the inquest report who proved his signature on the same which was marked as Exhibit Nos.2/5. In cross examination he stated that the dead body was decomposed and police did not allow him to go close to above dead body.

P.W.16 Md. Monsur Ali is another witness to above inquest report who proved his signature on the inquest report which was marked as Exhibit Nos.2/6. In cross examination he stated that he saw above dead body standing about 100 yards away.

P.W.17 Md. Ibrahim is another witness to the inquest report who identified his signature on the same which was marked as Exhibit Nos.2/7. In cross examination he stated that he does not know how above victim met with her death.

P.W.18 Md. Bahar Uddin is another witness to above inquest report of the dead body of victim Salma who identified his signature on the same which was marked as Exhibit Nos.2/8. In cross examination he stated that at about 10/11.00 AM he saw above dead body.

P.W.19 Md. Taraq Hossen is another witness to above inquest report of victim Salma who identified his signature on the inquest report which was marked as Exhibit Nos.2/9. In cross examination he stated that he does not know whether accused Enamul made the confession voluntarily or not.

P.W.20 Asaduzzaman (Raju) Talukder stated that he heard that the dead body of victim Salma was found in the Shampur field who was murdered by her husband accused Enamul. Above witness was declared hostile by the State and cross examined. In his cross examination by defense the witness stated that he heard about above occurrence from several persons but does not have any knowledge as to who committed above murder.

P.W.21 Dr. Md. Rostom Ali performed post mortem examination of the dead body of victim Salma Begum who stated that the dead body was in a state of advanced decomposition. He made following opinion:

“opinion: Cause of death could not be ascertained, it will depend on circumstantial evidence”

The witness proved the post mortem report and his signature on the same which were marked as Exhibit Nos.5 & 5/1 respectively. He also proved the chemical analysis report and the signature of the chemical analyst which were marked as Exhibit Nos.6 & 6/1 respectively.

P.W.22 Md. Fahim Foysal is the judicial Magistrate who recorded confession of accused Enamul on 29.06.2011 under section 164 of the Code of Criminal Procedure. The witnesses stated that he recorded above confession on compliance of all legal requirements, rule and practice after giving three hours time to accused Enamul for reflection of memory. Accused Enamul made above confession voluntarily. The witness proved above confession and his five signatures on the same and two signatures of accused Enamul which were marked as Exhibit Nos.7, 7/1, 7/2, 7/3, 7/4, 7/5, 7/6 and 7/7 respectively. The confession of accused Md. Enamul Haque is reproduced below:

আমি আমার স্ত্রী সালমাকে বিয়ে করার পর গত প্রায় ১৫ বছর যাবত আমার বর্তমান ঠিকানা তথা আমার শুল্লুরবাড়ী এলাকায় বসবাস করছিলাম। আমার স্ত্রী সালমা গত প্রায় এক-দুই বছর যাবত আমার সাথে খারাপ আচার-আচরণ করে আসছিলো, স্বামী হিসেবে আমার যে অধিকার তা আমার স্ত্রী আমাকে দিতো না, আমার খাবার দাবার এর ব্যাপারে খোঁজখবর নিতেনা। আমার সাথে আমার স্ত্রী ঠিকমতো কথাবার্তা বলতেনা, সকালের খাবার দুপুরে, দুপুরের খাবার-রাতে খেতে দিতো, আমার সাথে মাঝে-মাঝেই ঝগড়াঝাটি করতো। আমি পাঁচ ওয়াক্ত নামাজ পড়ি, কুরআন শরীফও পড়েতে পারি। আমি আমাদের দুই মেয়ে ও এক ছেলেকে অনেক কষ্টে কৃষি কাজ ও

দিনমজুরী করে বিয়ে দিয়েছিলাম। এভাবেই আমাদের সংসার চলছিলো। এই বছরের চার মাসের বিশ তারিখ রোজ বুধবার আমার স্ত্রী সালমা আমাকে বলে যে চলো বড় মেয়ে বিজলীল বাড়ী যাই। যখন ঐ দিন আমি ও আমার স্ত্রী সালমা আমাদের বড় মেয়ে বিজলী তথা বড় জামাই হামিদুল এর বাড়ী পীরপঞ্জ মরিচপাড়ায় বিকাল ৩/৪ ঘটিকার দিকে যাই। সেখানে খাওয়া-দাওয়া গল্পগুজব করে ঐ দিনই মাগরিব এর আযানের আগে আগে বাড়ী ফেরার জন্য আমি ও আমার স্ত্রী সালমা বাস ধরার জন্য কাছেই মটর স্টেশনে যাই। মটর স্টেশনে পৌঁছে আমি আমার স্ত্রী সালমাকে বলি যে তুমি অপেক্ষা করো আমি মাগরিবের নামাজটা পড়ে আসি। এই বলে আমি নামাজ পড়তে যাই। মাগরিবের নামাজ পড়ে মটর স্টেশনে ফিরে আসলে আমার স্ত্রী সালমা আমাকে জানায় যে সব বাস আজ চলে গেছে, আজ আর বাস নাই। তখন আমরা দুজন একটা ভ্যান ভাড়া করি। ভ্যানওয়ালা জানায় যে সে যতদূর পাকারাস্তা আছে মানে চানপুর যাবে তবে ভাড়া ৪০ টাকা দিতে হবে। তখন আমরা ঐ ভ্যানে করে চানপুর পর্যন্ত যাই। চানপুর থেকে আমাদের বাড়ী পর্যন্ত কাঁচা রাস্তা যা পায়ে হেটে প্রায় আধা ঘন্টা লাগে। চানপুর যাওয়ার পর ভ্যানওয়ালা কাচা রাস্তা দিয়ে যেতে না চাওয়ায় আমি ও আমার স্ত্রী সালমা ভ্যান ছেড়ে দিয়ে পায়ে হেটে আমাদের বাড়ীর দিকে রওনা হই। তখন চারিদিকে অন্ধকার তবে জোনাকির আলো কারণে মোটামুটি দেখা যায়। আমি ও আমার স্ত্রী সালমা ওভাবে হাটতে হাটতে নানা- গল্প-গুজব করতে থাকি। এভাবে হাটতে হাটতে আমি ও আমার স্ত্রী সালমা আমাদের বাড়ীর কাছাকাছি দুর্গা জসাইপাড়া রেল ক্রসিং এর কাছে পৌঁছি। তখন এশার নামাযের সময় প্রায়। আমি সে সময় আমার স্ত্রীকে বলি যে তুই আমার সাথে এমন খারাপ

ব্যবহার করিস ক্যান? আমি তোর স্বামী হই অথচ তুই আমার সাথে মেলামেশা করিস না। আমাকে আমার অধিকার দেইস না। আমার সেবা যত্ন করিস না। খালি ঝগড়া করিস। এখন তো ছেলে মেয়েরা বড় হইছে, বিয়া হইছে। এখন আমরা খালি কামকাজ করমো আর আমাকে সংসার করমো। তুই দশ পনের দিনেও একবার মোক তোর সাথে মোক তোর সাথে মেলামেশা কইরবার দেইস না, মুই তোক ছুইলেও তুই আশেপাশের মানুষক ডাকাকারি করিস, চিল্লাচিল্লি করিস, এটা কি ঠিক কাম! তুই ভালো হবা পাইস না। তখন আমার স্ত্রী আমাকে বলে যে, “ তোর কত সাধ হইছে আইজকা বাড়ীত যাও আগে তারপর তোর সাধা মেটাইম। বাড়ীত যায়া এলাকাবাসীকে দিয়া আইজকা তোর হাড্ডি ফাটাইম, তোক বাঁশ ডলা দেইম”। তখন আমার মাথায় রাগ উঠে যায়। আমি খুব রেগে দিয়ে বলি “ আইজকা তোক মারি ফেলাইম ডাঙ্গে” । তখন আমার স্ত্রী সালমা বলে “ ফেলাও মারি” আইজকা মুই তোর হাততে মরিম আর না হইলে বাড়ীত যায়া তোর হাড্ডি ফাটাইম। তখন আমার রাগ আরো বেড়ে যায় এবং আমি আমার স্ত্রীর গলা আমার দুই হাত দিয়ে টিপে ধরি। আমার স্ত্রী সালমা আমি গলা টিপে ধরা অবস্থায় দাঁড়িয়েই থাকে। এভাবে আমি প্রায় দশ মিনিট আমার স্ত্রীর সালমার গলা টিকে ধরে থেকে থেকে যেই ছেড়ে দিয়েছি অমনি আমার স্ত্রী সালমা মাটিতে পড়ে যায়। আমি তখন দেখি যে আমার স্ত্রী সালমা মরে গেছে। তখন আমি দিশেহারা হয়ে ভাবতে থাকি যে কি করবো। তখন আমি রেললাইনের পাশে থেকে আমার স্ত্রী সালমার লাশ ডান কাধে করে পার্শ্ববর্তী ডাঙ্গী বাড়ীতে ভূট্টা ক্ষেতে নিয়ে যাই। সেই ভূট্টা ক্ষেতে আমি আমার স্ত্রী সালমার লাশ ফেলে রেখে আমার বাড়ীতে যাই। বাড়ীতে আমার ছেলে আমাকে জিজ্ঞেস করে যে মা কই?” তখন আমি বলি

যে, “ তোর মাকে বড় বোনের বাড়ীতে রেখে এসেছি”। বাড়িতে আধা ঘন্টার মতো থেকে একটি কোদাল নিয়ে আমি আবার ঐ ভুট্টা ক্ষেতে যাই এবং মকবুলের কলাই ক্ষেতে গর্তকরে আমি আমার স্ত্রী সালমার লাশ মাটি পাচা দেই ঐ কলাই ক্ষেতের গর্তে। ঐ কোদালটি আমি কলাই ক্ষেতের পূর্ব পার্শ্বে বনবাড়ী ভাটা পোড়া জঙ্গলে ছুড়ে ফেলে দিই এবং সেনুয়া গ্রামে আমার বন্ধু, আলমের বাড়িতে যাই। সেখানে রাতটা থেকে পরদিন সকালে সেতাবগঞ্জে আমার বোনের বাড়ীতে যাই এবং সেখানে ৬ দিন থেকে আমার ভাই এর বাড়ীতে যাই এবং সেখান থেকে দিনাজপুর জেলার বিরল থানার হোসনা গ্রামে শহীদুলের বাড়িতে থাকি। সেখানে বসবার করে থাকতে থাকতে গত ২৮.০৬.২০১১ ইং তারিখে পুলিশ আমাকে ধরে ঠাকুরগাঁও এর পীরগঞ্জ থানায় নিয়ে আসে। আমি হঠাৎ করে রাগ হয়ে আমার স্ত্রী সালমার গলা টিপে ধরেছিলাম। আমি ভাবতেই পারিনি যে আমার স্ত্রী সালমা মারা যাবে। আমি জীবনে এই প্রথম ভুল করলাম। আমি অনুতপ্ত। আমি আমার স্ত্রী সালমাকে মেরে ফেলতে চাই নাই। আমি আমার স্ত্রীকে ভালোবাসতাম। এত বছর সংসার করার পর আমার স্ত্রী এভাবে আমার হাতেই মারা যাবে। আমি ভাবতেই পারছি না। আমি ক্ষমা চাই। আমাকে যে শাস্তি দেয়া হবে তা মেনে নেবো”।

In cross examination he stated that accused Enamul was arrested on 28.06.2011 and he denied that he did not examine the injury on the person of accused Enamul.

P.W.23 Md. Anowr Hossain is a constable of police who carried the dead body of victim Salma to Thakurgaon Sadar

Modern Hospital for post mortem examination. The witness proved the challan and his signature on the same which were marked as Exhibit No.8 & 8/1 respectively. The cross examination of above witness was declined by the defence.

P.W.24 Md. Amzad Hossen in the investigating officer of this case who stated that he performed inquest of the dead body of victim Salma in presence of witnesses and prepared a report. The witness proved his signature on the inquest report which was marked as Exhibit Nos.2/10. He also forwarded above dead body for post mortem examination by a challan through constable P.W.23 Md. Anowar Hossen. The witness proved his signature on above challan which were marked as Exhibit No.8/2. He also proved GDE No.965 dated 23.04.2011 and the signature of the officer in charge on the same which were marked as Exhibit Nos.3 & 3/1 respectively. In course of investigation he prepared a sketch map of the place of occurrence along with an index thereof. The witness proved above sketch map, index and his signatures on the those documents which were marked as Exhibit Nos.9, 9/1, 10 & 10/1 respectively. He arrested absconding accused Enamul on

28.06.2011 from Hosna village of Birol Police Station and at his showing recovered a spade from the jungle of Vatpara village on 29.06.2011 at 12.45 PM. He seized above spade by a seizure list. The accused was produced before a judicial Magistrate where he voluntarily made a confession as to the commission of murder of his wife. The witness proved the seizure list and his signature on the same which were marked as Exhibit Nos.11 & 11/1 and identified the alamots which were the parts of the Shari, Petticoat, blouse and a tabij and two city gold bangles of victim Salma and which were marked as materials Exhibit No.II series. In cross examination he stated that P.W.1 Islamul Haque did not say to him that accused Enamul pressed the throat of victim Salma. He further stated that accused Enamul and victim Salma arrived at Durlov Jasaipara Rail Crossing and the occurrence of murder occurred in above place but there is no sketch map or index of above occurrence place. No witness stated to him under section 161 that for about 2 years accused Enamul was quarreling with his wife victim Salma and for above reason accused Enamul planned to murder above victim. He cannot

say the time of the occurrence and the occurrence place is a public road. He did not find any eye witness of this murder.

Above is all about the evidence oral and documentary adduced by the prosecution to bring home the charge levelled against accused Enamul under section 302 of the Penal Code.

Mr. Sujit Chatterjee learned Deputy Attorney General submits that P.W.1 Islamul Haque, P.W.2 Most. Bijly Akter and P.W.3 Most. Chumki Begum are the son and daughters of accused Enamul and they have given consistent and mutually corroborative evidence supporting the prosecution case that accused Enamul accompanying his wife victim Salma went to visit the house of their elder daughter P.W.2 Bijly on 20.04.2011 afternoon and after eating meal they together set out to come back to their home on the same day evening. Accused Enamul alone returned to home but victim Salma did not come back. He gave of false information to P.W.1 Islamul that victim Salma was staying in the house of P.W.2 Bijly and the decomposed of dead body of victim Salma was found in the land of Makbul. Above circumstances clearly show that that accused Enamul murdered his wife victim Salma and

buried her dead body in above land with a spade which was recovered at the showing of accused Enamul. Above recovery and seizure of the spade has been proved by P.W.4 Sree Ramonikanto Ray, P.W.5 Sree Shadeb Chandra Ray, P.W.9 Monoronjon and P.W.10 Samcharon Ray. Moreover, accused Enamul who was arrested by police on 28.06.2011 made a confession to P.W.22 Md. Fahim Foysal 1 Judicial Magistrate on 29.06.2011 confessing to have committed the murder of his wife by pressing her throat. Above confession of accused Enamul was made voluntarily and the same was proved to be true.

On consideration of above circumstantial, oral and documentary evidence the learned Additional Sessions Judge has rightly convicted accused Enmaul Haque under section 302 of the Penal Code, 1860 which calls for no interference.

As far as the sentence of death is concerned the learned Deputy Attorney General submits that this is a case of brutal murder of the wife by her husband in the dark of night and without any provocation or instigation. On consideration of above materials on record the learned Additional Sessions

Judge has rightly sentenced accused Enamul to death which is lawful and deserves confirmation. As such the Death Reference may be accepted and Jail Appeal may be dismissed, concluded the learned Deputy Attorney General.

Ms. Nargis Akhter learned Advocate appearing on behalf of convict Md. Enamul Haque submits that there is no eye witness to the occurrence of murder of victim Salma which occurred in a public road not in the dwelling house of accused Enamul. The confessions of accused Enamul under section 164 of the Code of Criminal Procedure which was obtained by torture. The post mortem report and the inquest report did not mention the existence of any injury on the person of victim Salma. The cause of death could not be ascertained in above reports. The recovery of the spade allegedly used for the burial of the dead body of Salam could not be proved. There is no sketch map of the place of occurrence nor the investigation officer P.W.24 Amjad knows the time of the occurrence. As such this is a case of no evidence and the prosecution has failed to prove the charge

levelled against accused Enamul by legal evidence and he is entitled to be acquitted of above charge.

The learned Additional Session Judge has failed to appreciate above facts and circumstances of the case and materials on record properly and most illegally held that above murder of victim Salma was a pre-planned and cool blooded murder of the wife by the husband and on above erroneous perception of the facts and laws most illegally convicted accused Enamul under section 302 of the Penal Code, 1860 and sentenced him to death which is not tenable in law.

Ms. Shamima Parvin learned Advocate for convict appellant Md. Enamul Haque in Jail Appeal No.363 of 2017 adopted above submissions of the learned Advocate for the State Defence and submitted that in this case one son and two daughters of victim Salma have given evidence but none of them has stated that their father was a quarrelsome husband or he ever demanded dowry to victim Salam or he had any extra marital relation or any second wife or he ever planned to commit murder of his wife. As such the findings of the learned

Judge of the trial court that this was a pre-planned murder of a wife by the husband is without any legal basis. The poor and illiterate accused Enamul has been in custody in connection of this case since 28.06.2021 and he is languishing in the condemn cell since 24.08.2017. In view of above materials on record accused Enamul Haque may be set at liberty after setting aside the impugned judgment and order of conviction and sentence.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record including the FIR, inquest report, charge, post mortem report, charge sheet, seizure list, oral evidence of prosecution witnesses and other materials on record.

It is not disputed that accused Enamul is a poor and illiterate person who was the domesticated husband of victim Salma and P.W.1 Md. Islamul Haque is the only son and P.W.2 Bijly is the elder daughter and P.W.3 Chumki Begum is the younger daughter of accused Enamul and victim Salma. P.W.1 Islamul and P.W.2 Bijly have consistently stated in their respective evidence that on 24.04.2021 at about 4.00 PM

accused Enamul along with his wife victim Salma went to the house of P.W.2 Bijly Akter and after taking meal both of them together set out to return back to their home after Magrib prayer and accused Enamul alone returned to his house. P.W.1 Islamul and P.W.2 Bijly have given further corroborative evidence stating that accused Enamul falsely told to P.W.1 Islamul was staying in the house of P.W.2 Bijly. The decomposed dead body of victim Salma was recovered from Mokbul on 25.04.2011.

P.W.24 Md. Amzad Hossen Sub-Inspector of Police stated that he rushed to the above land of Makbul pursuant to G.D No.1045 dated 25.04.2011 and retrieved the dead body of victim Salma and performed inquest of the same in presence of P.W.11 Nuruzzaman, P.W.13 Md. Bablur Rahman, P.W.15 Md. Altafur Rahman, P.W.16 Md. Monsur Ali, P.W.17 Md. Ibrahim, P.W. 18 Md. Bahar Uddin, P.W.19 Md. Tareq Hossain and P.W.20 Asaruzzaman and who gave signatures on the inquest report as witnesses. All above P.Ws have consistently stated in their respective evidence that police retrieved the

decomposed dead body of victim Salma and performed inquest of the same.

Above dead body of victim Salma was fully decomposed and the same was identified on the basis of her wearing apparels the orange colour printed Shari, Pink colour petticoat, blouse, a tabij and two bangles of city gold. Above alamots were seized by P.W. 24 Amzad Hossen by seizure list. All above P.Ws were cross examined by the defence but their evidence remained unshaken, consistent and credence inspiring. In fact above P.Ws were not cross examined on their evidence that accused Enamul accompanying his wife victim Salma went to visit the house of his daughter P.W.2 Bijly on 20.04.2011 afternoon and both of them left above house to return to their home in the evening of the same date. Accused Enamul alone returned home but victim Salam did not return. The defence also did not dispute the identity of the decomposed dead body retrieved from the field of Makbul by P.W.24 Amzad Hossen as the dead body of victim Salma.

On consideration of above circumstantial and oral evidence P.Ws.1 Md. Islamul Haque, P.W. 2 Most. Bijly Akter,

P.W.3 Most. Chumki Begum, P.W. 10 Shamcharon Ray, P.W.11 Md. Nuruzzaman, P.W.12 Md. Amijul Islam, P.W. 13 Md. Bablur Rahman, P.W.15 Md. Altafur Rahman, P.W.16 Monsur Ali, P.W.17 Md. Ihrahim, P.W.18 Md. Bahar Uddin, P.W.19 Md. Tareq Hossen and P.W.24 Md. Amzad Hossen we hold that the prosecution has succeeded to prove by legal evidence that accused Enamul along with his wife victim Salma left the house of their elder daughter P.W.2 Bijly on 20.04.2011 evening to return to their home but accused Enamul alone returned to home and he gave a false explanation as to the whereabouts of victim Salma to P.W.1 Islamul Haque and fled away and the decomposed dead body of victim Salma was found in the field of Makbul on 25.04.2011 beyond reasonable doubt.

It has been stated by the prosecution that pursuant to the confession of accused Enamul the spade which was used to bury victim Salma was recovered from the jungle of Vatapara on 29.06.2011. In order to prove above recovery of the spade the prosecution has examined as many as 4 witnesses being Nos.P.W.4 Sree Ramonikanto Ray, P.W.5 Sree Sahdeb

Chandra Ray, P.W.9 Manoronjon and P.W.10 Shamcharon Ray. But all of above P.Ws have stated in their respective evidence that they were standing outside of the jungle and the spade was recovered from inside the jungle. Above evidence clearly show that none of above P.Ws had witnessed the recovery of the spade at the showing of accused Enamul. Moreover P.W.24 Md. Amzad Hossen the investigating officer of this case had produced and proved a photo of the recovered spade which was marked as material Exhibit No.IV. But we have found that that photo was not of a spade.

In above view of the materials on record we hold that the prosecution has failed to prove by legal evidence that at the showing of accused Enamul a spade was recovered and seized which was used for burial of the dead body of victim Salma.

In this case there is no eye witness who saw the occurrence of murder of victim Salma. P.W.24 Md. Amzad Hossain the investigating officer of this case has stated that the occurrence of murder of victim Salma took place on a public road at Dorlov Jasaipara Rail Crossing but there is no sketch

map or index of above occurrence place. No prosecution witness including P.W.24 Amzad Hossen could mention the exact time of the murder of victim Salma.

The inquest report of the dead body of victim Salma Exhibit No.2 did not mention the existence of any mark of injury or any apparent cause of death of victim Salma. The maker of above report P.W.24 Md. Amzad Hossen and witnesses of above inquest report P.W. 10 Shamcharon Ray, P.W.11 Md. Nuruzzaman, P.W.12 Md. Amijul Islam, P.W. 13 Md. Bablur Rahman, P.W.15 Md. Altafur Rahman, P.W.16 Monsur Ali, P.W.17 Md. Ihrachim, P.W.18 Md. Bahar Uddin, P.W.19 Md. Tareq Hossen could not mention the manner or cause of murder of victim Salma. Similarly the post mortem report of the dead body of victim Salma (Exhibit Nos.5 and 6) could not determine the cause of death of victim Salma. Nor any mark of injury was detected on the person of victim Salma. In his evidence P.W.21 Dr. Rostom Ali stated that the dead body of victim Salma was fully decomposed the cause of her death could be determined.

P.W.1 Md. Islamul Haque has stated that his father and mother cordially went to the house of his elder sister P.W.2 Bijly. Above Bijly stated as P.W.2 that her parents stayed at her house for 30 minutes peacefully and they did not quarrel. P.W.6 Halima Khatun who is the wife of the deceased brother of victim Salma stated that victim Salma was suffering from sickness and she used to take medicine regularly.

On consideration of above evidence of the competent prosecution witnesses we hold that the prosecution has succeeded to prove by legal evidence that victim Salma was murdered while she was walking with her husband in the darkness to return to home on 24.04.2011 evening and accused Enamul alone returned to home and gave a false explanation as to the whereabouts of his wife and fled away and the decomposed dead body of his wife was retrieved from the land of Mokbul after about four days.

As such accused Enamul was required to give an explanation as to how his wife met with her unnatural death and his failure to give a reasonable reply would make him liable for the murder of victim Salma. Accused Enamul has

given an explanation as to the circumstances, cause, manner, time and place of the occurrence of the unnatural death of his wife Salma and his contribution in the same in his confession made to P.W.22 Md. Fahim Foysal under section 164 of the Code of Criminal Procedure on 29.06.2011.

Undisputedly accused Enamul was arrested by police on 28.06.2011 and produced before P.W.22 Md. Fahim Foysal on 29.06.2011 when he made above confession. In his evidence P.W.22 Fahim has stated that he recorded above confession of accused Enamul on fulfillment of all regal requirements and accused Enamul gave above confession voluntarily. P.W.22 Fahim was cross examined by the defence but to no avail. His evidence remained unshaken, consistence and credence inspiring.

In above confession accused Enamul has stated that victim Salma and he went to the house of P.W.2 Bijly and on 20.04.2011 afternoon and after taking meal they set out to come back to home. Above part of the confession has been proved by the consistence evidence of P.W.2. Bijly and P.W.1

Islamul the son and daughter respectively of accused Enamul as mentioned above.

Accused Enamul further confessed that they were walking in the darkness and chatting and at one point of time above chatting transformed into hot altercations, threatening counter. Threatening and grave provocation and at the spar of the moment he pressed the throat of his wife causing her death. The relevant part of the confession is reproduced below:

আমি সে সময় আমার স্ত্রীকে বলি যে তুই আমার সাথে এমন খারাপ ব্যবহার করিস ক্যান? আমি তোর স্বামী হই অথচ তুই আমার সাথে মেলামেশা করিস না। আমাকে আমার অধিকার দেইস না। আমার সেবা যত্ন করিস না। খালি ঝগড়া করিস। এখন তো ছেলে মেয়েরা বড় হইছে, বিয়া হইছে। এখন আমরা খালি কামকাজ করমো আর আমাকে সংসার করমো। তুই দশ পনের দিনেও একবার মোক তোর সাথে মোক তোর সাথে মেলামেশা কইরবার দেইস না, মুই তোক ছুইলেও তুই আশেপাশের মানুষক ডাকাকারি করিস, চিল্লাচিল্লি করিস, এটা কি ঠিক কাম! তুই ভালো হবা পাইস না। তখন আমার স্ত্রী আমাকে বলে যে, “ তোর কত সাধ হইছে আইজকা বাড়ীত যাও আগে তারপর তোর সাধা মেটাইম। বাড়ীত যায়া এলাকাবাসীকে দিয়া আইজকা তোর হাডিড ফাটাইম, তোক বাঁশ ডলা দেইম”। তখন আমার মাথায় রাগ উঠে যায়। আমি খুব রেগে দিয়ে বলি “ আইজকা তোক মারি ফেলাইম ডাঙ্গে” ।

তখন আমার স্ত্রী সালমা বলে “ ফেলাও মারি” আইজকা মুই তোর হাততে মরিম আর না হইলে বাড়ীত যায়া তোর হাডি ফাটাইম। তখন আমার রাগ আরো বেড়ে যায় এবং আমি আমার স্ত্রীর গলা আমার দুই হাত দিয়ে টিপে ধরি”।

Accused Enamul lastly stated as follows:

“ আমি হঠাৎ রাগ হয়ে আমার স্ত্রী সালমার গলা টিপে ধরেছিলাম। আমি ভাবতেই পারিনি যে, আমার স্ত্রী মরে যাবে। আমি আমার স্ত্রী সালমাকে মেরে ফেলতে চাই নাই। আমি আমার স্ত্রীকে ভালোবাসতাম”।

Above confession of accused Enamul if taken in its entirety then the same is corroborated by the evidence of his son P.W.1 Islamul who stated in his evidence that in course of a hot altercation his father accused Enamul pressed the throat of his mother causing her death. P.W.6 Halima stated that victim Salma was sick and he was required to take medicine regularly. The place and time of the occurrence as disclosed in above confession have been proved by the oral evidence of prosecution witnesses as mentioned above.

We have carefully compared the confession of accused Enamul and found that the same is corroborated by the circumstances mentioned above and the oral evidence of competent prosecution witnesses. As such we hold that above

confession of accused Enamul was given voluntarily and the same was true.

On consideration of above confession in its entirety we found that in course of heated altercation accused Enamul was given sudden and grave provocation by his wife victim Salma and at the spur of the moment accused Enamul pressed the throat of victim Salma who was a sick woman causing her death and accused Enamul had no intention to commit murder of his wife. To constitute murder which is punishable under section 302 of the Penal Code, 1860 the act of causing of death must be accompanied by an intention to commit murder or knowledge that the act is likely to cause death. On a careful analysis of the confession of accused Enamul it becomes crystal clear that the act done by accused Enamul which caused the death of his wife victim Salam falls in exception one of section 300 of the Code of Criminal Procedure.

Section 300 exception 1 is reproduced below:

“Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the

provocation or caused the death of any other person by mistake or accident.

The above exception is subject to the following provisions:-

Firstly- That the provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person.

Secondly- That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.

Thirdly- That provocation is not given by anything done in the lawful exercise of the right of private defense.

Explanation- Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact".

In above view of the facts and circumstances of the case and evidence on record we hold that accused Enamul committed culpable homicide not amounting to murder as defined in Section 300 Exception 1 which is punishable under section 304 of the Penal Code, 1860 but the learned Additional

Sessions Judge committed serious illegality in convicting accused Enamul under section 302 of the Penal Code which is not tenable in law.

Since the prosecution has succeeded to prove by legal evidence that accused Enamul committed an offence punishable under section 304 (second part) of the Penal Code, 1860 the ends of justice will be met if the conviction of accused Enamul under section 302 is altered to section 304 (Second part) of the Penal Code, 1886.

As far as the sentence is concerned accused Enamul was a poor and illiterate person and domesticated husband of victim Salma who had no past record of commission of an offence. He has been in the death cell for about 6 years suffering the stress and agony of death every day. On consideration of above mitigating circumstances we are of the view that the ends of justice will be met if accused Enamul is sentenced to rigorous imprisonment for 10 (ten) years.

In above view of the materials on record we are unable to find any substance in this Death Reference being No.117 of 2017 which is liable to be rejected and Jail Appeal No.363 of

2017 deserves to be allowed in part with alteration of conviction and reduction of sentence as mentioned above.

In the result, the Death Reference No.117 of 2017 is rejected and Jail Appeal No.363 of 2017 is allowed in part and the conviction of accused Md. Enamul Haque is altered to section 304 (second part) of the Penal Code, 1860 instead of section 302 of the Penal Code, 1860 and he is sentenced to rigorous imprisonment for 10 (ten) years.

Accused Md. Enamul Haque is in custody in connection of this case from 28.06.2011, as such, accused Enamul has already served out above sentence and we are directing that accused Md. Enamul Haque, son of late Tojib Uddin be set at liberty at once if he is not wanted in connection with any other case.

Let the lower court's record along with a copy of this judgment be transmitted down at once.

Md. Aminul Islam, J:

I agree.

Md. Kamrul Islam
Assistant Bench Officer